

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
DARIEL ALI,

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, SGT. JOHN ZORRILLA,
TRANSIT BUREAU 4, BADGE #03069,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER JONATHAN RIVERA, TRANSIT
BUREAU 4, SHIELD #27011, INDIVIDUALLY
AND AS A POLICE OFFICER AND POLICE
OFFICER IVAN R. NUNEZ, TRANSIT
BUREAU 4, BADGE #13704, INDIVIDUALLY
AND AS A POLICE OFFICER,

Defendants.

Index No.:

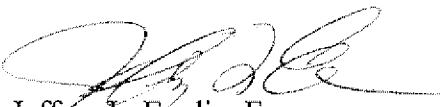
Date Purchased:

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose.

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 7 day of March, 2022



Jeffrey L. Emdin, Esq.,
Attorney for Plaintiff
330 West 38th Street Suite 302
New York, New York 10018
(212) 265-1350

Defendants address:

City of New York
c/o Office of the Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Sgt. John Zorrilla, Badge #03069
P.O. Jonathan Rivera, Badge #07011
P.O. Ivan R. Nunez, Badge #13704
c/o Transit Bureau #4
Union Square Subway Station
101 East 14th Street
New York, New York 10003

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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DARIEL ALI,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, SGT. JOHN ZORRILLA,
TRANSIT BUREAU 4, BADGE #03069,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER JONATHAN RIVERA, TRANSIT
BUREAU 4, SHIELD #27011, INDIVIDUALLY
AND AS A POLICE OFFICER AND POLICE
OFFICER IVAN R. NUNEZ, TRANSIT
BUREAU 4, BADGE #13704, INDIVIDUALLY
AND AS A POLICE OFFICER,

Defendants.

VERIFIED COMPLAINT

Index No.:

Date Purchased:

Plaintiff designates New York
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-----X
The plaintiff, Darriel Ali, by his attorneys, The Law Office of Jeffrey L. Emdin, complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned and on the 31st day of July, 2021, Sgt. John Zorrilla, hereinafter referred to as "Zorrilla" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the Transit Bureau #4, and at all relevant times set forth below acted in the capacity of a police officer.

4. Upon information and belief, at all times hereinafter mentioned and on the 31st day of July, 2021, Zorrilla was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee, and required to follow the Patrol

Guidelines of the New York City Police Department, then in effect.

5. Upon information and belief, at all times hereinafter mentioned, and on the 31st day of July, 2021, Police Officer Jonathan Rivera, hereinafter referred to as "Rivera" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the Transit Bureau #4, and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief his shield number is 27011.

6. Upon information and belief, at all times hereinafter mentioned and on the 31st day of July, 2021, Rivera was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

7. Upon information and belief, at all times hereinafter mentioned, and on the 31st day of July, 2021, Police Officer Ivan R. Nunez, hereinafter referred to as "Nunez" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the Transit Bureau #4, and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief his shield number is 13704.

8. Upon information and belief, at all times hereinafter mentioned and on the 31st day of July, 2021, Nunez was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

9. On the 31st day of July, 2021, plaintiff, Dariel Ali, hereinafter referred to as "Ali" and/or "plaintiff" was a resident of the State of New York, County of New York.

10. That on July 31, 2021 at approximately 4:30 a.m., the plaintiff, Ali, was lawfully inside the subway station at Essex and Delancy Streets, New York, New York, hereinafter referred to as "the location" observing a police interaction.

11. At that time, place and location other civilians were also present.

12. At that time and location, Zorrilla, Rivera and Nunez, hereinafter collectively referred to as the "officers" were on duty as New York City Police Officers dressed in plain clothes and inside the location.

13. The plaintiff was not engaged in any criminal activity at any time at the aforementioned date, time and location.

14. Upon information and belief, the "officers" were involved with an emotionally

disturbed individual. Zorrilla appeared to be laughing eliciting a comment from the plaintiff.

15. At that time and place, Zorrilla came through the turnstile and grabbed, pushed and removed Ali from inside the subway area.

16. Zorrilla ordered the plaintiff to vacate the station.

17. The plaintiff complied.

18. Upon information and belief, the officers, EMS Workers and the emotionally disturbed individual also exited the station.

19. Once outside the station, the EMS Worker put the emotionally disturbed person in the vehicle.

20. At that point, Zorrilla rushed at Ali, grabbed him and violently threw him to the ground.

21. Upon information and belief, Rivera and Nunez were present and failed to intercede or stop, and instead assisted Zorrilla.

22. Upon information and belief, Zorrilla got into additional violent altercations earlier in the evening at the same station which were the subject of news articles, Excruciating videos of NYC Cop are not consistent with any rational notion of public safety: NAACP Lawyer.; Viral Video of NYC Woman busted for turnstile jumping puts NYPD Commission on defensive, NY Daily News August 4, 2021.

23. Upon information and belief, Rivera and Nunez were also present at these incidents involving excessive use of force and failed to intercede.

24. Upon information and belief, before this incident, Zorrilla was the subject of 29 allegations of abuse and misconduct filed with the CCRB arising from eight (8) separate incidents. He was sued at least six (6) times, costing the City almost \$300,000.00 in settlement payments.

25. Upon information and belief, at least five (5) complaints filed with the CCRB were substantiated, including but not limited to: abuse of authority: retaliatory arrest; abuse of authority, use of force; pepper spray; force: nonlethal restraining device; and force: pepper spray

26. One of the complaints of physical force made against Zorrilla (April 2020) also named Nunez, however that complaint was closed due to the unavailability of the complainant.

27. Upon information and belief, Zorrilla's erratic behavior and acts of violence were known to the "City" and "NYPD" prior to July 31, 2021.

28. On July 31, 2021, the "officers" used physical force and arrested and injured

plaintiff, placing him in handcuffs and purposely stepping on and breaking his glasses.

29. The plaintiff was placed in handcuffs and arrested.

30. The officers' actions caused the plaintiff pain and emotional distress.

31. The plaintiff was searched inside the precinct and processed for arrest.

32. The plaintiff was held in custody against his will for approximately twenty (20) hours.

33. The plaintiff was falsely charged with resisting arrest, disorderly conduct and obstruction of governmental administration on Docket # CR-017152-21.

34. The criminal court complaint was signed by Rivera.

35. All criminal charges against Ali were dismissed on December 15, 2021.

36. Upon information and belief police officers submitted false police reports including but not limited to the arrest report, complaint report, and memobook entries.

37. Upon information and belief Zorrilla was the highest ranking officer at the scene of the plaintiff's arrest and approved the plaintiff's arrest.

38. Upon information and belief the officers participated in the conspiracy to file said false reports, and to have the plaintiff falsely charged and prosecuted for crimes that they knew that plaintiff did not commit.

39. That at all relevant times herein, the Defendants were on duty and the defendants were all acting within the scope of their employment, and the defendants' unlawful acts were committed in furtherance of the City of New York's interests, and without legal justification or excuse

40. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were timely and duly served upon the comptroller of the defendant "City".

41. That a 50(h) hearing of the plaintiff was held. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

42. That this action is commenced within one year and 90 days after the cause of action arose.

43. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the

exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE IMPRISONMENT AGAINST ALL DEFENDANTS

44. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "43" with the same force and effect as if more fully and at length set forth herein.

45. That beginning on or about the 31st day of July, 2021, at or about approximately 4:30 a.m., at or near the "location" until the plaintiff's release from custody approximately twenty hours later, the defendants, their agents, servants and/or employees detained and imprisoned the plaintiff without any just cause or grounds.

46. That Ali's imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process, and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

47. Ali was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

48. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

49. That all said conduct was committed by the defendants within the scope of their employment with the City of New York and/or the New York City Police Department.

50. That by reason of the aforesaid false imprisonment and detention, Ali was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

51. That by reason of the aforesaid, Ali has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AGAINST THE NAMED DEFENDANTS

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "51" with the same force and effect as if more fully and at length set forth herein.

53. That beginning on or about the 31st day of July, 2021, at or about approximately 4:30 a.m. at the "location", the plaintiff, was seized, handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

54. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, when the defendants lacked cause to believe that Ali committed, or was about to commit a crime or was guilty of any crimes.

55. Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

56. That the defendants, their agents servants and/or employees, as set forth above, intended to arrest Ali; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

57. That all said conduct was committed by the defendant officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

58. That by reason of the aforesaid false arrest, the plaintiff, Ali was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

59. That by reason of the aforesaid, Ali has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
FOR ASSAULT AND BATTERY AGAINST THE DEFENDANTS

60. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "59" with the same force and affect as if more fully and at length set forth herein.

61. On July 31, 2021 at the location Ali was seized, thrown to the ground, grabbed, held, kneed, had his skin cut into the ground, handcuffed, had his arms violently pulled back and upward, threatened and physically touched by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant "officers".

62. That all said contact was committed without the plaintiff's permission or consent.

63. That all said contact was unlawful and without privilege.

64. That the use of force was without justification.

65. That all contact committed by defendants through their agents, servants, and/or employees, including defendant officers, was offensive to Ali and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or emotional trauma.

66. That all said conduct was committed by the officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

67. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

68. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR EXCESSIVE USE OF FORCE

69. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "68" with the same force and affect as if more fully and at length set forth herein.

70. That all the aforementioned contact committed by the officers was committed without Ali's permission or consent.

71. That all said contact was unlawful and without privilege.
72. That the use of force was without justification.
73. That the use of force was excessive and beyond the means necessary to effectuate Ali's arrest.
74. At no time did any of the officers present intervene, stop, mitigate or prevent the excessive use of force from occurring, although they were present and had the means to do so.
75. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "officers", was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff Ali to sustain physical and/or psychological injury.
76. That the above acts committed by the defendants constituted an assault and/or battery through the use of excessive force of Ali.
77. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENCE AGAINST THE DEFENDANTS

78. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "77" with the same force and affect as if more fully and at length set forth herein.
79. That the defendant, "City" was careless and/or negligent in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising, investigating, disciplining and/or promoting as and for its employees, defendant "Zorrilla", in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and

employees, were otherwise careless, negligent and reckless.

80. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendant "Zorrilla", prior to the stop, seizure, search, discourtesy, false arrest, malicious prosecution, and assault and battery of Ali on July 21, 2021.

81. That the City failed to properly retrain said officers, negligently continued to employ said officers, , negligently assigned, retained, and promoted Zorrilla despite evidence of his police misconduct and continued to assign Zorrilla to act in an enforcement/arrest capacity, without proper supervision, training and discipline.

82. That Zorrilla, and Rivera and Nunez, while acting within the scope of his/her employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in which they investigated and/or performed his police dates; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; in that they failed to secure prompt and necessary medical attention; and in that they failed to timely notify the New York County District Attorney's Office of exculpatory information; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

83. That the aforesaid occurrence, to wit: seizure, search, arrest, imprisonment assault and battery, excessive use of force, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants "officers" without any negligence on the part of either of the plaintiffs contributing thereto.

84. That by reason of the aforesaid, the plaintiff, Ali was imprisoned, lost his freedom, injured and stressed, and he was thereby damaged.

85. That by reason of the aforesaid, the plaintiff Ali has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SIXTH CAUSE OF ACTION:
ALLEGING VIOLATIONS OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983, 1985, 1986 AND 1988 BY THE CITY AND EACH
POLICE OFFICER IN HIS INDIVIDUAL CAPACITY
AND AS AGENT OF THE CITY OF NEW YORK, PLAINTIFF ALLEGES:

86. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "85" with the same force and effect as if more fully and at length set forth herein.

87. That at all times hereinbefore and hereinafter mentioned, the defendant "Zorrilla" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

88. That at all times hereinbefore and hereinafter mentioned, the defendant Zorrilla was acting pursuant to orders and directives from defendant, The City of New York.

89. That during all times hereinbefore and hereinafter mentioned, the defendants Zorrilla, Rivera and Nunez, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983 and/or 1988.

90. That at all times hereinbefore and hereinafter mentioned, the defendant "officers" were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his/their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

91. That at all times hereinbefore and hereinafter mentioned, the defendant "officers" were acting pursuant to orders and directives from defendant, The City of New York.

92. That the "City" knew of the improper, unconstitutional and/or illegal police

practices of Zorrilla prior to July 31, 2021 and yet continued to employ and promote Zorrilla without any discipline and/or retraining and placed him in a position of command where other officers, including but not limited to Rivera and Nunez, would follow his lead to the detriment of civilian's rights.

93. Upon information and belief, this practice of retention of "bad" officers was not unique to Zorrilla, and was a practice adopted by the defendant City and/or the NYPD, and/or was treated with deliberate indifference by the City and/or NYPD.

94. In a New York Times article published November 15, 2020 titled A Watchdog Accused Officers of Serious Misconduct: Few were Punished, by Ashley Southall, Ali Watkins and Blacki Miglozzi, it reported that of the 6,900 misconduct charges recommended over the highest level of discipline was recommend, the NYPD ignored 71% of the recommendations and routinely downgraded the charges. This included only two of the 28 recommended charges since the current police commissioner Dermot Shea has been in charge of the NYPD.

95. The Times article found after reviewing charges brought against 3,188 officers that the Police Department followed the Review Board's recommendations less than 20 percent of the time; that fewer than one in five officers received punishment ranging in severity from 1 lost day vacation to 12 months of dismissal probation; that just seven officers were fired (and only after being convicted of a crime in court); and that many officers had multiple findings against them, but continued to be promoted.

96. It is in this atmosphere, which was created, permitted or acted upon with deliberate indifference by the City, which allowed the constitutional violations of Ali to occur and permitted the defendant officers to act with impunity.

97. That the unlawful and illegal conduct of defendant officers deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- i. The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- ii. The right not to be discriminated against based upon the plaintiff's

race, creed, sex, or sexual orientation.

- iii. The right to Due Process Law.
- iv. The right to equal protection under the law.
- v. The right not to be subjected to cruel and unusual punishment
- vi. The right to freedom of speech and expression

98. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, falsifying evidence, discrimination and malicious prosecution, and conspiracy to commit the above, the defendants, "City", "Zorrilla, Rivera and/or Nunez violated Ali's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983 and/or 1988.

99. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

100. That by reason of the aforesaid, plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages (against Zorrilla, Rivera and Nunez), costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper on the sixth cause of action.

AS AND FOR A SEVENTH CAUSE OF ACTION

101. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "100" with the same force and effect as if more fully and at length set forth herein.

102. That the defendants initiated a criminal case against the plaintiff in Criminal Court, New York County.

103. That there was no reasonable or probable cause to commence the prosecution against the plaintiff.

104. That in commencing the arrest and prosecution, the defendants acted with malice and disregard for the truth.

105. Plaintiff was at all times innocent of the crimes alleged.

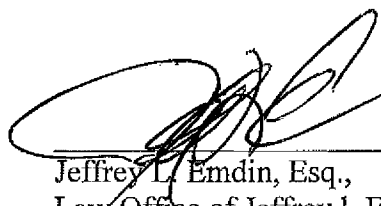
106. That all criminal charges against the plaintiff were dismissed on December 15, 2021.

107. That by reason of the aforesaid malicious prosecution, Ali was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

108. That by reason of the aforesaid, Ali has been damaged in an amount exceeding the jurisdictional limits of the lower courts

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the sixth cause of action) and such other and further relief as to the Court seems just and proper on the First through the Seventh causes of action.

DATED: New York, New York
March 9, 2022

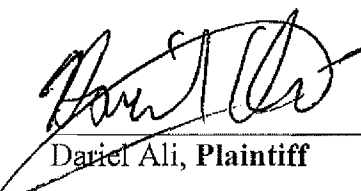


Jeffrey L. Emdin, Esq.,
Law Office of Jeffrey L. Emdin
Attorneys for the Plaintiff
330 West 38th Street, Suite 302
New York, New York 10018
(212) 265-1350

CLIENT VERIFICATION

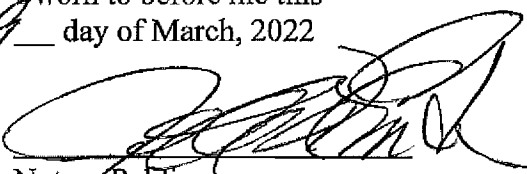
STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, Dariel, Ali being duly sworn depose and say: I am the plaintiff in the within the action,
I have read the foregoing Verified Complaint, and know the contents hereof; the same is true to
my own knowledge and/or based upon information and belief.



Dariel Ali, Plaintiff

Sworn to before me this
9__ day of March, 2022



Notary Public

JEFFREY L. EMDIN
Notary Public, State of New York
No. 02EM6008790
Qualified in Westchester County
Commission Expires November 12, 2022